

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 02/27/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties
EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and
SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

[https://contracosta-courts-
ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1](https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1)

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00901
CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH
*HEARING ON MOTION IN RE: SANCTIONS FOR FAILURE OF WADDINGTON TO OBEY RULES
FILED BY: SALEHOMOUM, MOJDEH
TENTATIVE RULING:

Continued to 3/13/15/9AM, D22, due to unavailability of Judge Joni Hiramoto, the judge to whom the case is assigned.

2. 9:00 AM CASE NUMBER: C22-00901

CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH

*HEARING ON MOTION IN RE: MONETARY SANCTIONS FOR FAILURE OF OMID BAHRAMI TO OBEY RULES

FILED BY: SALEHOMOUM, MOJDEH

TENTATIVE RULING:

Continued to 3/13/15/9AM, D22, due to unavailability of Judge Joni Hiramoto, the judge to whom the case is assigned.

3. 9:00 AM CASE NUMBER: C24-01031

CASE NAME: MATTHEW JACKSON VS. PAR WESTERN LINE CONTRACTORS, LLC

HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO AMIEL J. PROVOSTY

FILED BY: PAR WESTERN LINE CONTRACTORS, LLC

TENTATIVE RULING:

Unopposed. GRANTED.

4. 9:00 AM CASE NUMBER: C24-03121

CASE NAME: MOLLY STAFFORD VS. CITY OF RICHMOND

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Before the Court is Defendant City of Richmond's Demurrer to Plaintiff's Complaint.

For the following reasons, Defendant's Demurrer is **sustained**.

Allegations of Complaint

Plaintiff alleges that she was caused to fall due to a crack in the sidewalk located near the properties of 4140 Fran Way LLC, in Richmond, California. The fall injured Plaintiff. It is alleged that the sidewalk was owned and maintained by Defendant City of Richmond. The complaint asserts two causes of action: (1) Premises Liability, and (2) General Negligence.

Plaintiff filed her form complaint on November 19, 2024. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days of after the filing of the complaint." (Cal. R. Ct. 3.110 (b).) "After a summons has been served on a person, proof of service of the summons ... **shall be filed**, unless the defendant has previously made a general appearance." (Code Civ. Proc. § 417.30.) The docket does not indicate that any proof of service of summons has been filed in this matter.

Defendant City of Richmond filed its demurrer on November 10, 2025.

Legal Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) "The function of a demurrer is to